IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR THE COUNTY OF WASHINGTON

State of Oregon, Plaintiff	)	
	)	Case No.: 21CR25804
vs.	)	
	)	JUDGMENT
Barry Trenell Washington, Defendant	)	Case File Date: 05/28/2021 District Attorney File #: 398994

DEFENDANT

True Name: Barry Trenell Washington
Date Of Birth: 04/06/1984
Sex: Male
State Identification No (SID): 14798711OR

HEARING

Proceeding Date: 09/07/2021
Judge: Ramon A Pagan
Court Reporter: Recording, FTR

Defendant appeared in person and was not in custody. The court determined that the defendant was indigent for purposes of court-appointed counsel, and the court appointed counsel for the defendant. The defendant was represented by Attorney(s) April M Yates, OSB Number 174947. Plaintiff appeared by and through Attorney(s) Mitchell B Diesko, OSB Number 183293. Defendant knowingly waived two day waiting period before sentencing.

COUNT(S)

It is adjudged that the defendant has been convicted on the following count(s):

Count 3 : Unlawful Use of a Weapon

Count number 3, Unlawful Use of a Weapon, 166.220, Felony Class C, committed on or about 03/21/2021. Conviction is based upon a Guilty Plea on 09/07/2021.

Sentencing Guidelines

The Crime Severity Classification (CSC) on Count Number 3 is 6 and the Criminal History Classification (CHC) is H.

Probation

Defendant is sentenced to Supervised Probation for a period of 3 year(s) and shall be subject to the following conditions of Probation:

Defendant is subject to all general conditions of probation (ORS 137.540).

Furthermore, Defendant is subject to the following Special Conditions of Probation (ORS 137.540(2)): Defendant shall:

- If applicable, attend and successfully complete a parenting class approved by the supervising officer.
- Defendant shall obey all laws.
- Defendant shall attend, comply with all rules of program, and successfully complete an approved Domestic Violence Intervention Program as directed by the supervising officer. Sign a release of information for Community Corrections with treatment providers or Department of Human Services. Defendant shall waive any confidentiality or privilege necessary in order to allow treatment providers or supervising officer to communicate with victim.
- Defendant shall attend a Washington County Survivor's Impact Panel as directed by the supervising officer.
- Do not participate in couples' or family counseling without prior written permission of the supervising officer.
- The defendant shall not attempt to contact or have direct or indirect contact with the victim(s) Ashle Penn; nor shall the defendant enter onto the premises, or within 100 yards, of the victim(s) residence, vehicle, place of employment, or school without the prior written permission of the supervising officer or criminal court. "Contact" includes but is not limited to the following: communicating in any form, accessing victim's social networking sites, remaining in the same vicinity as the victim such as a store, theater, sporting event, gym, church, etc., inquiring about the victim through the victim's friends or family, following the victim, or being outside a place that the victim frequents such as the victim's business or school. This no contact provision remains in place even if a related protective order is dismissed.
- Do not have contact with the victim's family, excluding joint, minor children. For cases in which the offense was committed in the immediate presence of minor children, the defendant shall not have contact with such children until approved by the supervising officer or criminal court.
- Do not menace, intimidate, threaten or have offensive contact, including language, with anyone including but not limited to intimate partners. Disclose any potential intimate relationships (prior to intimacy) to your supervising officer. Defendant shall consent to the supervising officer communicating with others about the defendants domestic violence history.
- The defendant shall submit to polygraphs per PO.
- Do not possess weapons, including firearms or ammunition. Do not apply for any license/permit authorizing the possession of firearms. The defendant shall surrender possession of all weapons including firearms and ammunition as directed by the supervising officer.
- The defendant shall notify the supervising officer within 24 hours of any new arrests, citations, restraining orders, stalking protective orders or other civil protective orders issued against defendant.
- Consent to the search of person, vehicle or premises upon the request of a representative of the supervising officer if the supervising officer has reasonable grounds to believe that evidence of a violation will be found, and submit to fingerprinting or photographing, or both, when requested by the Department of Corrections or a county community corrections agency for supervision purposes.
- Defendant may be considered for GPS monitoring.

- The defendant shall obey all other court orders, including but not limited to all restraining orders, stalking protective orders, civil protective orders, juvenile court orders, and domestic relations court orders.
- All court ordered fines and fees, excluding cases in which compensatory fines or restitution have been ordered, are due in full within 30 days unless a payment plan is established with the clerk of the court. If compensatory fines or restitution are ordered, all financial obligations in the case must be paid in full 60 days prior to the expiration of probation, unless otherwise ordered. Payment plans include previously ordered amounts. The laws allow fees to recover administrative and collection costs to be automatically added and collected without further notice to you or action by the court, when the court has to establish a payment account, refer a matter for collection, or send DMV a suspension notice.
- Restitution is to be determined within 90 days. A Hearing - Prima Facie will be held on November 4, 2021 at 8:30 am. Defendant waives appearance at hearing. Defendant agrees to pay lawful restitution. Failure to appear will result in waiving your right to object to the imposition, amount or distribution of Restitution and may result in a warrant being issued for your arrest.
  The total financial balance is to be determined, however once the total is ordered, your monthly payments are set at this rate listed
  $1 - $50 Pay in full
  $51 - $500 Minimum $25 a month
  $501 - $1500 Minimum $50 a month
  $1501 - $2500 Minimum $100 a month
  Greater than $2500 Total balance divided by number of months on probation.

Statutory Provisions

Defendant is ordered to submit blood or buccal sample and thumbprint pursuant to ORS 137.076.

Monetary Terms

Defendant shall be required to pay the following amounts on this count:

Fees and Assessments: Payable to the Court.

Type	Amount	Modifier	Reduction	Actual Owed
Fine	$200.00			$200.00
Extradition Reimbursement	$17.25			$17.25
Total	$217.25			$217.25

Count 5 : Recklessly Endangering Another Person

Count number 5, Recklessly Endangering Another Person, 163.195, Misdemeanor Class A, committed on or about 03/21/2021. Conviction is based upon a Guilty Plea on 09/07/2021.

Incarceration -- Suspended Execution

Defendant is sentenced to the custody of for a period of ; and defendant is sentenced to probation. If defendant violates any of the following terms or conditions of probation, the court may execute this suspended sentence.

Probation

Defendant is sentenced to Supervised Probation for a period of 3 year(s) and shall be subject to the following conditions of Probation:

Defendant is subject to all general conditions of probation (ORS 137.540).

Furthermore, Defendant is subject to the following Special Conditions of Probation (ORS 137.540(2)):
Defendant shall:

- Comply with the same terms and conditions as listed on count 3 in this case.

Monetary Terms

Defendant shall be required to pay the following amounts on this count:

Fees and Assessments: Payable to the Court.

Type	Amount	Modifier	Reduction	Actual Owed
Fine	$100.00			$100.00
Total	$100.00			$100.00

Count 7 : Menacing - Constituting Domestic Violence

Count number 7, Menacing - Constituting Domestic Violence, 163.190, Misdemeanor Class A, committed on or about 03/21/2021. Conviction is based upon a Guilty Plea on 09/07/2021.

Suspended Imposition of Sentence

Imposition of sentence is suspended.

Probation

Defendant is placed on Supervised Probation for a period of 3 year(s) and shall be subject to the following conditions of Probation:

Defendant is subject to all general conditions of probation (ORS 137.540).

Furthermore, Defendant is subject to the following Special Conditions of Probation (ORS 137.540(2)):
Defendant shall:

- Comply with the same terms and conditions as listed on count 3 in this case.

Monetary Terms

Defendant shall be required to pay the following amounts on this count:

Fees and Assessments: Payable to the Court.

Type	Amount	Modifier	Reduction	Actual Owed
Fine	$100.00			$100.00
Total	$100.00			$100.00

COUNTS DISPOSED WITH NO CONVICTION

Count # 1, Burglary in the First Degree is Dismissed.

Count # 2, Burglary in the First Degree is Dismissed.

Count # 4, Criminal Mischief in the Second Degree is Dismissed.

Count # 6, Reckless Driving is Dismissed.

If convicted of a felony or a crime involving domestic violence, you may lose the right to buy, sell, transport, receive, or possess a firearm, ammunition, or other weapons in both personal and professional endeavors pursuant to ORS 166.250, ORS 166.291, ORS 166.300, and/or 18 USC 922(g).

MONEY AWARD

Judgment Creditor: State of Oregon
Judgment Debtor: Barry Trenell Washington

Payees are to be paid as ordered under Monetary Terms.

Defendant is ordered to pay the following monetary totals, including restitution or compensatory fine amounts stated above, which are listed in the Money Award portion of this document:

Type	Amount Owed
Extradition Reimbursement	$17.25
Fine	$400.00
Total	$417.25

The court may increase the total amount owed by adding collection fees and other assessments. These fees and assessments may be added without further notice to the defendant and without further court order.

Subject to amendment of a judgment under ORS 137.107, money required to be paid as a condition of probation remains payable after revocation of probation only if the amount is included in the money award portion of the judgment document, even if the amount is referred to in other parts of the judgment document.

Any financial obligation(s) for conviction(s) of a violation, which is included in the Money Award, creates a judgment lien.

Payment Schedule

Payment of the fines, fees, assessments, and/or attorney's fees noted in this and any subsequent Money Award shall be scheduled by the clerk of the court pursuant to ORS 161.675.

Payable to:

Washington County Circuit Court
150 N First Avenue
Hillsboro, Oregon 97124
P: 503-846-8888
F: http://courts.oregon.gov/washington

Dated the _____ day of _____, 20_____

Signed: 9/7/2021 10:22 AM

Signed: _____

Ramon A Pagan

Circuit Court Judge, Ramón A. Pagán